

26STCV13432 26STCV13432

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: DEFENDANT'S DEMURRER TO PLAINTIFF'S COMPLAINT

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Case Number: 26STCV13432 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

MARK WILLIAMS,

Plaintiff,

vs.

RANDOLPH HAMMOCK, DOES 1-10,

Defendant(s).

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CASE NO: 26STCV13432

[TENTATIVE] ORDER RE: DEFENDANT'S
DEMURRER TO PLAINTIFF'S COMPLAINT

Dept. 731

August 4, 2026

8:30 A.M.

Moving Party: Defendant, the Honorable Randolph Hammock

Opposing Party: None

Notice: OK

Plaintiff Mark Williams sues the
Honorable Randolph Hammock, Judge of the Superior Court, pursuant to an April
27, 2026, Complaint alleging claims for deprivation of rights under color of
law pursuant to 42 United States Code section 1983.

Plaintiff's Complaint arises from
allegations that, acting under color of law, Judge Hammock "refused to
adjudicate his authority" when directly questioned and nevertheless "proceeded
to order" dismissals of cases filed by Plaintiff, and that Hammock acted
"outside lawful judicial authority without jurisdiction," thereby denying
Williams due process by exercising judicial power without first establishing
the constitutional authority required to do so. Based thereon, Plaintiff
asserts deprivation of constitutional rights to due process, impartial
adjudication, and lawful exercise of judicial authority under 42 U.S.C. § 1983.

(Complaint, pp. 2-4 at § III.)

Now before the Court is Judge

Hammond's properly noticed yet unopposed demurrer to Plaintiff's Complaint, including on the grounds of judicial immunity. (Compare Complaint, p. 1, with Demurrer, Proof of Service [service at same postal office box address].)

After review, the Court finds in favor of Judge Hammond.

The United States Supreme Court

established the rule that judges are immune from civil suits arising out of the exercise of their judicial functions. (*Mireles v. Waco* (1991) 502 U.S. 9, 11.) Moreover, in California, judicial officers are absolutely immune from liability for the performance of their judicial duties. (*Howard v. Drapkin* (1990) 222 Cal.App.3d 843, 851; *Frost v. Geernaert* (1988) 200 Cal.App.3d 1104; *Oppenheimer v. Ashburn* (1959) 173 Cal.App.2d 624, 629-630.) The test for judicial immunity is set forth in *Stump v. Sparkman* (1973) 435 U.S. 349, 362: "[T]he factors determining whether an act by a judge is a 'judicial' one relate to the nature of the act itself, i.e., whether it is a function normally performed by a judge, and to the expectations of the parties, i.e., whether they dealt with the judge in his judicial capacity."

Here, the allegations in the

Complaint fall squarely into that of a person dealing with a judge in his judicial capacity. For example, the Complaint alleges deprivation of rights through Judge Hammond's "refus[al] to adjudicate his authority" when directly questioned and "proceed[ing] to order" dismissals of cases filed by Plaintiff. (Complaint, pp. 2-4 at § III.)

Defendant, the Honorable Randolph

Hammock's demurrer is accordingly SUSTAINED, without leave to amend.

Defendant, the Honorable Randolph

Hammock, is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting

on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court